INTELLECTUAL PROPERTY LAW

Paper-V | 4th Semester | LL.B. (3-YDC)

Osmania University | Faculty of Law

UNIT V

Law of Patents

Comprehensive Exam Preparation Notes

Target: 75+ Marks | Parts A, B & C

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📋 UNIT V — OVERVIEW & EXAM INTELLIGENCE

What IS in This Unit

- Legal concept of a patent; historical overview of patent law in India
- Patents Act, 1970 — salient features, types of patents
- Statutory criteria for patentable inventions (novelty, inventive step, industrial application)
- Non-patentable subject matter (Section 3 exclusions)
- Procedure for obtaining a patent in India and under PCT
- Rights and obligations of a patentee
- Limitations on patent rights — compulsory licensing, state acquisition, secrecy directions
- Infringement of patent rights and procedural remedies

What is NOT in This Unit

- Trade Marks Act → Unit IV
- Designs Act → Unit IV
- Copyright Act → Unit III
- International treaty details (Paris, PCT in depth) → Unit II
- Plant varieties (PPVFR Act) → Unit I

⭐ Predicted Questions (Based on Past Papers)

Topic	Part	Rating
Kinds / Types of Patents	A	⭐⭐⭐⭐⭐
Rights, Duties & Obligations of Patentee	B	⭐⭐⭐⭐⭐
Essential Conditions for Patenting an Invention	B	⭐⭐⭐⭐⭐
Patent Infringement	A	⭐⭐⭐⭐⭐
Compulsory Licensing	A	⭐⭐⭐⭐⭐
Rights & Obligations of Patentee (Essay)	B	⭐⭐⭐⭐⭐
Sun Pharma new formulation — patentable? (Problem)	C	⭐⭐⭐⭐⭐
Kusum's patent — compulsory licence / cancellation (Problem)	C	⭐⭐⭐⭐⭐
Improved motorcycle — can brother get patent? (Problem)	C	⭐⭐⭐⭐
Mind-reading hat — patentability (Problem)	C	⭐⭐⭐⭐⭐

🔢 Critical Numbers — Unit V

- Patents Act — 1970 (India) | Major amendments: 1999, 2002, 2005
- Patent term — 20 years from date of filing (Section 53)
- TRIPS minimum — 20 years from filing (Art. 33) — India complies
- Product patents in pharma/agro — introduced in India by 2005 amendment (TRIPS compliance)

- Compulsory licence (Section 84) — applied after 3 years of patent grant
- Section 84 grounds: (a) Reasonable requirements of public not satisfied; (b) Not at reasonably affordable price; (c) Not worked in India
- Section 92 — compulsory licence in national emergency/extreme urgency
- Section 3 — Non-patentable inventions (list of exclusions)
- Section 3(d) — New form of known substance not patentable unless enhanced efficacy
- Section 3(j) — Plants, animals, essentially biological processes NOT patentable
- Section 3(k) — Computer programmes per se NOT patentable
- Section 3(p) — Traditional knowledge NOT patentable
- Section 39 — Indian residents must file Indian patent first (secrecy)
- Section 47 — Government right to use patent for state purposes
- Section 64 — Revocation of patent
- Section 104 — Jurisdiction: suit for infringement in District Court / HC
- Section 108 — Remedies: injunction, damages, account of profits
- PCT national phase entry — 30 months from priority date
- First Indian patent case — Re: Indian Patent Act 1856 (first patent law)

📝 PART A — SHORT NOTES (6 Marks Each)

Answer any FIVE. ~200–250 words each. Time: 5–7 min each.

A1. Kinds / Types of Patents ⭐⭐⭐⭐⭐

Definition: Under the Patents Act, 1970, patents may be classified into several types based on the nature of invention, applicant, and procedural mechanism. Understanding these types is essential for advising inventors on appropriate patent strategy.

Classification Based on Nature of Invention:

- Product Patent: Protects the product itself — its composition, structure, or substance. Exclusive right to make, use, sell, or import the product. Example: A new pharmaceutical compound.
- Process Patent: Protects a method or process of manufacturing/producing a product. Others can make the same product using a different process. Example: A new synthesis process for aspirin.
- Patent for Improvement: A patent granted for an improvement in or relating to a patented invention (Section 54). The improvement must itself be novel and inventive.

Classification Based on Applicant / Procedure:

- Ordinary Application (Section 7): Standard application by inventor or assignee filed with complete or provisional specification.
- Convention Application (Section 135): Filed by a person who has filed in a Paris Convention country within 12 months — claims priority from foreign filing date.
- PCT International Application (Chapter I & II): Filed under Patent Cooperation Treaty — one application, 157 countries, 30-month national phase entry.
- Divisional Application (Section 16): Filed when original application contains more than one invention — 'divided' into separate applications, each covering one invention.
- Continuation / Addition Application: For adding improvements to a pending parent application.

🟨 PRODUCT vs PROCESS: Product patent = you own the THING. Process patent = you own the METHOD. If someone makes the same product by a DIFFERENT method, they do NOT infringe a process patent. Product patents are STRONGER protection.

📌 Example: Bayer holds a product patent for Nexavar (sorafenib compound). No one can make, sell, or import sorafenib in India without Bayer's licence — regardless of the manufacturing process used.

⚖️ Bayer Corp. v. Union of India (2014 SC) — Nexavar product patent upheld; compulsory licence granted to Natco under Section 84 on grounds of affordability — distinguishing types of patents relevant to the case.

💡 TIP: Exam often asks 'Kinds of Patents' as Part A or tests types in problems. Remember: Product > Process in strength of protection. Divisional = when one application covers two inventions. Convention = Paris priority claim within 12 months.

A2. Patent Infringement ⭐⭐⭐⭐⭐

Definition: Patent infringement is the unauthorised making, using, offering for sale, selling, or importing into India of a patented invention during the term of the patent, without the patentee's licence. Governed by Sections 104–115, Patents Act, 1970.

Acts Constituting Infringement (Section 48):

- Making the patented product without licence
- Using the patented process without licence (process patent infringement)

- Offering for sale the patented product
- Selling the patented product without authorisation
- Importing the patented product into India for the above purposes

Types of Infringement:

- Direct Infringement: Directly performing the patented act without licence
- Contributory/Indirect Infringement: Supplying components used primarily for infringing a patent
- Literal Infringement: Defendant's product/process reads literally on the patent claims
- Infringement by Equivalents (Doctrine of Equivalents): Defendant uses a slightly different means to achieve substantially the same result — still infringement

> 🟨 **CLAIM-BASED TEST: Patent infringement is determined by comparing defendant's product/process against the PATENT CLAIMS (not the specifications). If every element of at least one claim is found in the defendant's product/process → infringement.**

Defences Against Infringement (Section 107):

- Patent is invalid / should be revoked (invalidity defence)
- Act is an experiment/research use (Section 107A — Bolar exemption)
- Act is for non-commercial private use
- Prior use (user before grant date)
- Compulsory licence granted (Section 84)

> 📌 Example: Generic company makes and sells patented drug compound without licence → direct patent infringement. Generic company imports patented drug from a third country → import infringement under Section 48(b).

⚖ Roche v. Cipla (Delhi HC 2012) — Roche's patent for Erlotinib (Tarceva, cancer drug); Cipla launched generic. HC denied interim injunction on balance of convenience + public interest grounds (cancer drug access); full trial ordered.

⚖ F. Hoffmann-La Roche v. Cipla (Delhi HC 2015) — Final decision: Roche's patent valid; Cipla infringed. But compulsory licensing considerations weighed in balance of remedies.

> 💡 *TIP: Infringement is claim-based. Section 48 = exclusive rights of patentee. Section 107A = Bolar exemption (research/regulatory experiments NOT infringement). Section 104 = suit filed in District Court or High Court.*

A3. Compulsory Licensing ⭐⭐⭐⭐⭐

Definition: A compulsory licence is a government-authorised licence that allows a third party to make, use, or sell a patented invention without the consent of the patent owner, upon payment of adequate remuneration. Governed by Sections 84–92, Patents Act, 1970 and TRIPS Article 31.

Grounds for Compulsory Licence (Section 84) — After 3 Years of Patent Grant:

- (a) Reasonable requirements of the public with respect to the patented invention have NOT been satisfied
- (b) The patented invention is NOT available to the public at a REASONABLY AFFORDABLE PRICE
- (c) The patented invention is NOT worked in India (not manufactured in India)

Emergency Compulsory Licence (Section 92):

- Government can grant compulsory licence suo motu in cases of national emergency, extreme urgency, or public non-commercial use
- No prior negotiation with patent owner required (unlike Section 84)
- Example: Pandemic, natural disaster, war situation

🟨 **PROCEDURE (Section 84): Any person → Apply to Controller of Patents after 3 years of grant → Controller considers: (1) Nature of invention; (2) Patentee's ability to supply; (3) Whether patent worked in India; (4) Measures taken to make available at affordable price → Licence granted with ADEQUATE REMUNERATION to patentee.**

Conditions Attached to Compulsory Licence (Section 90):

- Primarily for supply to domestic Indian market
- Licensee must pay adequate royalty to patentee
- Licence is non-exclusive and non-assignable
- Granted for balance of patent term unless Controller specifies shorter period

📌 Example: Bayer's Nexavar (cancer drug) — priced at Rs. 2.8 lakhs/month. Natco Pharma applied for compulsory licence (Section 84). Controller granted it in 2012: Natco sold Nexavar generic at Rs. 8,880/month. Royalty: 6% of net sales paid to Bayer. India's FIRST compulsory licence.

⚖ Bayer Corp. v. Union of India (Natco Pharma Case) (IPAB 2012, upheld SC 2014) — India's first compulsory licence. All three Section 84 grounds satisfied: (a) public need unmet; (b) not affordable; (c) not worked in India by Bayer. Consistent with TRIPS Art. 31 and Doha Declaration.

💡 TIP: Section 84 = 3 years wait + 3 grounds (public need, affordability, working). Section 92 = emergency, no wait, government initiative. TRIPS Art. 31 = international legal basis. Doha Declaration = affirms right to use compulsory licence for public health.

A4. Rights and Obligations of a Patentee ⭐⭐⭐⭐⭐

Definition: A patentee is the person/entity in whose name a patent has been granted. The Patents Act, 1970 confers both exclusive rights (to exploit the invention commercially) and obligations (to work the patent, pay renewal fees, disclose fully) on the patentee.

Rights of a Patentee (Section 48):

- Product patent: Exclusive right to MAKE, USE, OFFER FOR SALE, SELL, and IMPORT the patented product in India
- Process patent: Exclusive right to USE the process, and to USE/OFFER FOR SALE/SELL/IMPORT the product directly obtained by the process
- Right to assign the patent (Section 68) — must be in writing, registered
- Right to licence the patent — exclusive or non-exclusive (Section 70)
- Right to sue for infringement (Section 104)
- Right to claim damages, injunction, account of profits on infringement (Section 108)

Obligations of a Patentee:

- WORK the patent in India — exploit the invention commercially in India (Section 83)
- PAY annual renewal fees — to maintain the patent in force (Section 53)
- DISCLOSE best method — full and complete disclosure in the specification (Section 10)
- DISCLOSE foreign applications — must disclose other countries where patent filed (Section 8)
- NOT abuse the patent — must not misuse patent to create monopolies against public interest

🟨 **BALANCE OF RIGHTS & OBLIGATIONS: A patent is NOT an absolute monopoly. Section 83 states the patent system is not exploited in a manner contrary to public interest. The patentee's obligation to WORK the patent in India is the counterpart of the exclusive rights — use it or lose it (via compulsory licence).**

📌 Example: A foreign pharma company patents a drug in India but manufactures it only abroad and imports it at high cost. It has NOT worked the patent in India — this triggers Section 84(1)(c) compulsory licence ground.

⚖️ *Novartis AG v. Union of India (2013 SC) — Novartis's obligations under Indian patent law: disclosure of prior art (Section 3(d)); working requirement; balance of private monopoly vs public health interest. Court upheld India's restrictive patentability criteria as consistent with TRIPS flexibilities.*

💡 *TIP: Rights: '5 MUSIIs' = Make, Use, Sell, Import, and sue for Infringement. Obligations: 'WPDA' = Work the patent, Pay fees, Disclose best method, disclose foreign Applications.*

A5. Secrecy Directions & State Acquisition of Patents ⭐⭐⭐☆☆

Definition: Secrecy directions and state acquisition are two important limitations on patent rights under the Patents Act, 1970 — mechanisms through which the government can restrict or take over a patent in the national interest, particularly for defence and security.

Secrecy Directions (Sections 35–42):

- When an application for a patent relates to an invention relevant for DEFENCE purposes, the Controller may give 'secrecy directions' (Section 35)
- Secrecy direction prevents publication and communication of the application
- Patent application is kept confidential — patent may still be granted but information not published
- Government pays compensation to the applicant for loss due to secrecy direction (Section 36)
- Secrecy direction reviewed every year; revoked when no longer necessary
- Section 39: Indian residents must NOT file a patent application OUTSIDE India without first filing in India and getting approval (or 6 weeks passing without secrecy direction)

Government / State Acquisition of Patents (Section 102):

- Central Government can acquire any patent or patent application for a purpose of the government
- Government pays adequate compensation to the patentee (Section 102(2))
- Government use of patents: Section 47 — government can use any patented invention for its own purposes without licence (but must pay compensation)

🟨 **DISTINCTION: Secrecy Direction = information hidden, patent may still be granted, compensation paid for restriction. Government Acquisition = patent TRANSFERRED to government, full compensation paid. Government Use (Section 47) = government uses the patent but does NOT acquire it — patentee retains ownership.**

📌 Example: A scientist invents a new stealth technology for aircraft. The Controller issues a secrecy direction — the patent application is not published; the government compensates the inventor for withholding publication. Later, the government may acquire the patent under Section 102.

⚖️ *Section 102 has not been frequently litigated in India — but is analogous to eminent domain (Article 300A Constitution — no deprivation of property without compensation).*

💡 *TIP: Secrecy = confidentiality of information + compensation. Acquisition = transfer of ownership + compensation. Both protect national security while paying the inventor. Section 39 violation (filing abroad first) = criminal offence.*

A6. Non-Patentable Inventions (Section 3 Exclusions) ⭐⭐⭐⭐☆

Definition: Section 3 of the Patents Act, 1970 lists a comprehensive set of subject matter that is NOT patentable in India — either because it does not constitute an 'invention', or because granting a patent would be against public interest, morality, or India's specific policy objectives (particularly in pharmaceutical access).

Key Non-Patentable Subject Matter (Section 3):

Section	Exclusion	Rationale
3(a)	Frivolous / contrary to natural laws	Mind-reading hats, perpetual motion machines
3(b)	Contrary to public order, morality, health	Biological weapons, illegal drug methods
3(c)	Mere discovery of natural substance / phenomenon	Discovering a mineral; laws of nature
3(d)	New form of known substance without enhanced efficacy	India's anti-evergreening provision
3(e)	Admixture of known substances (no synergistic effect)	Simply mixing two existing compounds
3(f)	Mere arrangement / rearrangement of known devices	Combining existing machines without inventive step
3(i)	Diagnostic, therapeutic, surgical methods	Medical methods on human/animal body
3(j)	Plants, animals, essentially biological processes	Seeds, plant varieties, animal breeds
3(k)	Computer programmes per se / mathematical methods	Pure software, algorithms, business methods
3(l)	Literary, dramatic, musical, artistic works	These are copyright subject matter
3(m)	Mere scheme/rule/method for performing mental acts	Games, puzzles without technical character
3(p)	Traditional knowledge / known properties of traditional knowledge	TK protection against bio-piracy

🟨 **SECTION 3(d) — INDIA'S MOST IMPORTANT PATENT PROVISION: A new form (salt, ester, polymorph, metabolite, isomer) of a known substance is NOT patentable UNLESS it differs significantly in EFFICACY from the known substance. This prevents pharmaceutical 'evergreening' (minor modifications to extend patent life).**

📌 Example: Imatinib mesylate (Gleevec) is a new salt form of imatinib — Novartis applied for patent. SC rejected under Section 3(d): new salt form must show significantly enhanced therapeutic efficacy over known imatinib. Novartis could not prove this. India's MOST CITED patent case.

⚖ Novartis AG v. Union of India (2013 SC) — Section 3(d) upheld as constitutional and TRIPS-compliant. SC defined 'efficacy' in pharmaceutical context as 'therapeutic efficacy'. New polymorphs/salts/esters without enhanced therapeutic efficacy = NOT patentable.

💡 TIP: Exam ALWAYS tests Section 3(d) and 3(j). Remember: 3(d) = no evergreening (enhanced efficacy needed). 3(j) = no plant/animal patents (use PPVFR Act). 3(k) = no software per se (needs technical effect). 3(p) = no TK patents (TKDL blocks these).

A7. Revocation of Patents (Section 64) ⭐⭐⭐☆☆

Definition: Revocation means the cancellation of a granted patent by the Intellectual Property Appellate Board (IPAB) / High Court, rendering the patent void ab initio (from the beginning). It is the mechanism by which an invalid or improperly granted patent is nullified.

Grounds for Revocation (Section 64):

- Invention was already claimed in an earlier patent (prior claiming)
- Patent granted on false suggestion or representation
- Invention not novel (prior art exists) — Section 64(1)(e)
- Invention obvious — lacks inventive step — Section 64(1)(f)
- Invention is not an 'invention' under the Act (Section 3 exclusions)
- Complete specification does not sufficiently describe the invention
- Scope of claims wider than what is justified by specification
- Patentee has failed to disclose information required under Section 8 (foreign applications)

Who Can Apply for Revocation:

- Any interested person — competitor, consumer group, government
- Central Government — in public interest
- Counter-claim in infringement suit — defendant can counter-claim revocation

🟨 **REVOCATION = RETROACTIVE NULLIFICATION: When a patent is revoked, it is treated as never having existed (void ab initio). Any licences granted under it become void. Any damages claimed for 'infringement' of a revoked patent must be refunded.**

📌 Example: US Patent Office granted a patent for wound-healing use of turmeric. India challenged it with prior art (ancient Sanskrit texts). Patent REVOKED — treated as if it never existed. TKDL regularly provides prior art to revoke bio-piracy patents globally.

⚖ *Enercon v. Aloys Wobben (IPAB 2013) — Multiple wind turbine patents revoked on grounds of lack of inventive step and obviousness over prior art.*

💡 *TIP: Revocation ≠ Infringement suit. In a patent infringement suit, the DEFENDANT can file a counter-claim for revocation (Section 64(1)). If revocation succeeds, the infringement suit automatically fails (no valid patent).*

📄 PART B — LONG ESSAYS (15 Marks Each)

Answer any TWO. ~600–750 words. Time: 20–25 min each.

B1. Essential Conditions for Patenting an Invention under the Patents Act, 1970

Introduction

A patent is a time-limited exclusive right granted by the state to an inventor in exchange for public disclosure of the invention. The grant of a patent is not automatic — an invention must satisfy precise statutory criteria under the Patents Act, 1970. These criteria serve a dual purpose: they ensure that patents are granted only for genuine, new, and useful innovations, and they prevent the monopolisation of the public domain. The three primary conditions — novelty, inventive step, and industrial applicability — together with the requirement that the invention not fall within Section 3 exclusions, form the complete gatekeeping framework for patent grant in India.

1. Definition of 'Invention' (Section 2(1)(j))

'Invention' means a new product or process involving an inventive step and capable of industrial application. This definition itself encapsulates the three core criteria. All three must be simultaneously satisfied.

> 🟨**THREE PILLARS OF PATENTABILITY: (1) NOVELTY — new product or process; (2) INVENTIVE STEP — non-obvious; (3) INDUSTRIAL APPLICATION — capable of being manufactured/used commercially. All three are mandatory — failure on any one = no patent.**

2. Novelty (New Invention) — Section 2(1)(l)

An invention is 'new' or 'novel' if it has not been anticipated by prior art — i.e., it has not been published, used, or otherwise made available to the public anywhere in the world before the date of filing.

- Prior art includes: Earlier patents, publications, public uses, oral disclosures, exhibitions anywhere in the world
- Novelty is assessed globally — prior publication anywhere destroys novelty
- Grace period: India does NOT have a general grace period for disclosures (unlike USA)
- Section 2(1)(l): 'New invention' means any invention or technology which has not been anticipated by publication in any document or used in the country or elsewhere in the world before the date of filing.

> 🟨 **ANTICIPATION TEST: If a single prior art document discloses ALL the elements of the claimed invention, the invention is anticipated (lacks novelty) and cannot be patented.**

> 📌 Example: Aspirin (acetylsalicylic acid) was patented by Bayer in 1899. If someone today claims a patent for aspirin — the 1899 patent and over a century of publications would destroy novelty. The claim would fail.

3. Inventive Step (Non-Obviousness) — Section 2(1)(ja)

'Inventive step' means a feature of an invention that involves technical advance as compared to existing knowledge, or having economic significance, or both, and that makes the invention NOT OBVIOUS to a person skilled in the art.

- Standard: A hypothetical 'Person Skilled in the Art' (PSITA) — expert in the relevant field but not an inventor
- If such a person, looking at prior art, would find the invention obvious — no inventive step
- Mere combination of known elements is NOT inventive unless the combination produces an unexpected/synergistic result

- Economic significance alone can qualify as inventive step (India-specific — Section 2(1)(ja))

🟨 OBVIOUS vs INVENTIVE: If a skilled person says 'Of course! I could have done that easily' → OBVIOUS → no patent. If they say 'I never would have thought of that' → INVENTIVE → patent possible.

⚖ Novartis AG v. Union of India (2013 SC) — SC confirmed: a new polymorphic form of imatinib lacking enhanced therapeutic efficacy fails BOTH Section 3(d) AND the inventive step test — a new form that produces no new result is obvious to a person skilled in pharmaceutical chemistry.

4. Industrial Application (Utility) — Section 2(1)(ac)

An invention is 'capable of industrial application' if it can be made or used in any kind of industry, including agriculture.

- Must have a specific, substantial, and credible utility
- Purely speculative inventions with no demonstrated utility cannot be patented
- Agriculture is expressly included — inventions for agricultural application qualify
- Diagnosis methods for disease — excluded by Section 3(i) despite industrial context

📌 Example: A new cancer drug compound that has been tested and shown to inhibit tumour growth = industrially applicable. A theoretical molecule with no demonstrated biological activity = not industrially applicable.

5. Section 3 — Non-Patentable Inventions (Key Exclusions)

Even if novelty, inventive step, and industrial application are satisfied, an invention may still be non-patentable if it falls within Section 3. Key exclusions relevant to exam problems:

Exclusion	Section	Key Case/Example
New form of known substance — no enhanced efficacy	3(d)	Novartis v. UOI (2013) — Gleevec rejected
Plants, animals, essentially biological processes	3(j)	Monsanto v. Nuziveedu (2018) — Bt cotton
Computer programmes per se	3(k)	Software must have technical effect to qualify
Traditional knowledge	3(p)	Turmeric patent revoked; TKDL evidence
Diagnostic/therapeutic/surgical methods	3(i)	Medical treatment methods excluded
Discoveries of natural phenomena	3(c)	Discovering gravity = not patentable

6. Additional Requirements for Patent Grant

- Complete Specification (Section 10): Must fully describe the invention, disclose best method, include clear and concise claims defining scope of protection
- Enablement: Specification must enable a PSITA to reproduce the invention without undue experimentation
- Disclosure of source of biological material: If invention uses biological material from India — source must be disclosed (Section 10(4)(ii)(D))
- First-to-File system: India uses first-to-file, not first-to-invent — whoever files first gets priority

7. The Patent Bargain

The fundamental philosophy of patent law is the 'patent bargain': the state grants a 20-year monopoly to the inventor; in exchange, the inventor makes full public disclosure enabling the public to use the invention after expiry. This quid pro quo is reflected in Section 10's disclosure requirements and Section 83's working obligations.

> 🟨 PATENT BARGAIN: Monopoly for 20 years ↔ Full public disclosure. After 20 years → public domain. This is why complete, enabling disclosure is mandatory — it is the public's consideration for granting the monopoly.

Conclusion

The conditions for patentability under the Patents Act, 1970 — novelty, inventive step, industrial application, and non-exclusion under Section 3 — form a carefully calibrated filter that admits genuinely inventive contributions while keeping the public domain free from monopolisation of obvious combinations, natural phenomena, and traditional knowledge. India's Section 3(d), validated by the Supreme Court in Novartis, has become a global model for balancing pharmaceutical innovation with access to medicines. The constitutional underpinning lies in Article 300A (property rights balanced with public interest) and India's TRIPS obligations under Article 51 of the Constitution.

B2. Rights, Duties & Obligations of a Patentee — Balancing Innovation with Public Interest

Introduction

A patent represents the state's recognition of an inventor's creative effort through the grant of a temporary monopoly. The Patents Act, 1970, however, makes clear that a patent is not an absolute or unconditional right. Section 83 of the Act explicitly states that the patent system is intended to promote technological innovation and transfer of technology and that patents should not be exploited in a manner contrary to public health, public order, or national interest. The patentee's rights are therefore matched by equally significant duties — creating a framework in which private innovation serves the public good.

1. Rights of a Patentee

(a) Exclusive Rights (Section 48)

Type of Patent	Exclusive Rights
Product Patent	Make, Use, Offer for Sale, Sell, Import the patented product in India
Process Patent	Use the process; Use, Offer for Sale, Sell, Import the product directly obtained by the process

> 🟨 SCOPE OF SECTION 48 RIGHTS: The five exclusive rights — Make, Use, Offer for Sale, Sell, Import — apply only WITHIN INDIA and only DURING the 20-year patent term. After 20 years, the invention enters the public domain.

(b) Commercial Rights

- Right to assign the patent (Section 68): Transfer ownership to another person — must be in writing, registered with Patent Office
- Right to grant licences (Section 70): Exclusive or non-exclusive licences to third parties
- Right to sue for infringement (Section 104): File suit in District Court or High Court
- Right to claim remedies (Section 108): Injunction, damages, or account of profits

- Right of priority: Convention application (Paris) claims priority from foreign filing date

(c) Right of Surrender and Restoration

- Patentee may surrender the patent voluntarily (Section 63) — advertisements inviting opposition; if no valid opposition, patent surrendered
- If patent lapses (non-payment of renewal fees), patentee can apply for restoration within 18 months (Section 60)

2. Obligations / Duties of a Patentee

(a) Obligation to Work the Patent in India (Section 83)

This is the most critical obligation. Section 83 provides the philosophy:

- Patents are NOT granted merely to enable patentees to enjoy a monopoly for importation
- Patents should be worked in India on a commercial scale — manufactured/produced in India
- Patents should not be worked in a manner contrary to the public interest
- Failure to work in India for 3 years after grant → compulsory licence under Section 84(1)(c)

> 🟨 **'WORKING' IN INDIA: Manufacturing the patented product in India = working. Importing the product into India (even legally) = NOT working. This obligation pushes technology transfer to India — consistent with TRIPS Art. 27's non-discrimination provision.**

(b) Obligation to Pay Renewal Fees (Section 53)

- Annual renewal fees must be paid to keep the patent in force
- Non-payment → patent lapses (ceases to have effect)
- Patent term: 20 years from date of filing of application (Section 53(1))

(c) Obligation of Full Disclosure (Section 10)

- Complete specification must fully and particularly describe the invention and its best method
- Claims must be clear, concise, and fairly based on the disclosed matter
- Disclosure of source of biological material used in invention
- Failure to disclose: ground for revocation (Section 64(1)(m))

(d) Obligation to Disclose Foreign Patent Applications (Section 8)

- Applicant must inform Controller of all corresponding applications filed in other countries
- Must update Controller with prosecution results (grant, rejection, amendments) in foreign offices
- Non-disclosure under Section 8 = ground for revocation (Section 64(1)(m))

(e) Obligation Not to Abuse Patent Rights

- Must not demand prohibitive prices that make the invention inaccessible to the public
- Must not impose restrictive conditions in licences contrary to public interest (Section 140)
- Must not engage in anti-competitive practices (Competition Act, 2002 applies)

3. Limitations on Patent Rights — Public Interest Overrides

Limitation	Section	Effect
Compulsory Licence — public need/affordability/working	84	Third party can make/sell without consent; royalty paid to patentee
Emergency Compulsory Licence	92	Govt grants licence in national emergency; no prior negotiation
Government Use	47	Govt uses patent for own purposes; compensation

		paid; patentee keeps ownership
State Acquisition	102	Govt acquires patent with compensation; ownership transferred to state
Secrecy Directions	35–42	Defence inventions kept secret; compensation paid for restriction
Revocation	64	Invalid patents cancelled; void ab initio
Bolar Exemption	107A	Research/regulatory experiments not infringement
Parallel Imports	107A(b)	Import of patented product from a country where patent holder marketed it

> 🟨 **SECTION 83 — THE GUIDING PHILOSOPHY: Patent rights are not absolute. The Act must strike a balance — incentivising private R&D investment through temporary monopoly while ensuring that the public benefits from the invention through working, affordable pricing, and eventual public domain access.**

4. Key Cases on Patentee's Rights vs Public Interest

⚖ Novartis AG v. Union of India (2013 SC) — Patentee's right to enhanced patent (new polymorph) vs public interest in affordable medicine. SC upheld Section 3(d), balancing innovation incentive with health access.

⚖ Bayer Corp. v. Union of India / Natco Pharma (IPAB 2012, SC 2014) — Patentee's pricing obligation: Rs. 2.8 lakhs/month held to violate Section 84(1)(b) — not at reasonably affordable price. India's first compulsory licence — balancing Bayer's rights with cancer patient access.

⚖ F. Hoffmann-La Roche v. Cipla (Delhi HC 2012/2015) — Balance of convenience in granting interim injunction for patent infringement of cancer drug; public health interest weighed against patentee's right to interim relief.

Conclusion

The rights and obligations of a patentee under the Patents Act, 1970 reflect a sophisticated balance between private incentive and public benefit — the foundational bargain of patent law. While Section 48 grants powerful exclusive rights, Sections 83–92 ensure these rights are exercised responsibly. The compulsory licensing mechanism, working obligation, and government use provisions are not exceptions to patent rights — they are the built-in balancing mechanisms that make the patent system serve its true purpose: the advancement of science and technology for the benefit of all. This framework is rooted in India's constitutional values (Articles 39, 47 — Directive Principles on equitable distribution and public health) and its obligations under TRIPS (particularly the Doha Declaration flexibilities).

⚖️ PART C — PROBLEM QUESTIONS / IRAC METHOD (10 Marks Each)

Answer any TWO. Strict IRAC format. Time: 15 min each.

C1. Problem: Sun Pharma's New Formulation of 'Candid' — Patentable?

(Based on Aug/Sep 2024 Q13: Sun Pharma came up with a new formulation of the existing medicine 'Candid'. It wants to apply for patent for that new formulation which has 30% extra bio-availability than the older form. Will Sun Pharma get a patent?)

I — ISSUE

Whether Sun Pharma's new formulation of the existing medicine 'Candid' — which exhibits 30% extra bio-availability compared to the known compound — is patentable under the Patents Act, 1970, particularly in light of Section 3(d).

R — RULE

The following provisions govern:

1. Section 2(1)(j) — Invention: Must be a new product or process involving an inventive step and capable of industrial application. ALL THREE criteria (novelty, inventive step, industrial application) must be satisfied.

2. Section 3(d) — KEY PROVISION: The mere discovery of a new form of a known substance which does not result in the enhancement of the known efficacy of that substance is NOT patentable. Forms include: salts, esters, ethers, polymorphs, metabolites, pure form, particle size, isomers, mixtures of isomers, complexes, combinations, and other derivatives of known substances.

3. Explanation to Section 3(d): Salts, esters, ethers, polymorphs, etc. of known substance shall be considered to be the SAME SUBSTANCE unless they differ significantly in PROPERTIES with regard to EFFICACY.

4. In Pharmaceutical Context: The Supreme Court in Novartis v. Union of India (2013) held that 'efficacy' for pharmaceutical compounds means THERAPEUTIC EFFICACY — the ability to treat disease/improve patient outcomes. Bio-availability = the rate and extent to which the drug is absorbed into the bloodstream.

> 🟨 **CRITICAL RULE — Section 3(d) TEST: New form of known substance → NOT patentable UNLESS → enhanced EFFICACY (therapeutic efficacy in pharma context). QUESTION: Does 30% extra bio-availability = enhanced therapeutic efficacy?**

A — APPLICATION

Applying the rules to the facts:

- 'Candid' is an EXISTING medicine — its active compound is a KNOWN SUBSTANCE
- Sun Pharma's new formulation is a NEW FORM of this known substance — squarely within Section 3(d)'s scope

- 30% extra bio-availability = the drug is absorbed faster/more efficiently into the bloodstream
- KEY QUESTION: Does improved bio-availability = enhanced THERAPEUTIC EFFICACY?

Analysis of the bio-availability–efficacy link:

  - Bio-availability is a pharmacokinetic property (how the drug moves through the body)
  - Improved bio-availability CAN lead to better therapeutic outcomes — if the drug reaches target tissues more effectively, it may treat disease better
  - BUT: Bio-availability improvement alone is NOT automatically = enhanced therapeutic efficacy
  - Sun Pharma must demonstrate that the 30% extra bio-availability translates into IMPROVED CLINICAL OUTCOMES — better disease treatment, reduced side effects, lower doses needed for same effect

⚖ Novartis AG v. Union of India (2013 SC) — SC interpreted Section 3(d) strictly: enhanced efficacy means enhanced therapeutic efficacy. Improved physical/chemical properties (like solubility, stability, bio-availability) do NOT automatically satisfy Section 3(d) unless they translate to enhanced therapeutic efficacy.

⚖ Roche v. Cipla (Delhi HC) — Enhanced absorption leading to clinically demonstrated better outcomes = potentially patentable; mere property improvement without clinical data = Section 3(d) bar.

C — CONCLUSION

Sun Pharma's patent application faces a SIGNIFICANT HURDLE under Section 3(d).

The outcome depends on the clinical evidence:

- IF Sun Pharma can demonstrate with clinical data that the 30% extra bio-availability translates into SIGNIFICANTLY ENHANCED THERAPEUTIC EFFICACY (better patient outcomes, lower dosing, fewer side effects) → Patent MAY be granted (Section 3(d) bar overcome)
- IF the 30% bio-availability improvement is only a pharmacokinetic property without demonstrated enhancement in therapeutic effect → Patent will be REFUSED under Section 3(d)

Additionally, Sun Pharma must independently satisfy: (1) NOVELTY — new formulation not previously disclosed; (2) INVENTIVE STEP — not obvious to a pharmaceutical chemist skilled in the art; (3) INDUSTRIAL APPLICATION — commercially manufacturable.

🟨 FINAL ANSWER: Patent likely REFUSED under Section 3(d) UNLESS Sun Pharma proves 30% bio-availability improvement = enhanced THERAPEUTIC EFFICACY with clinical data. Bio-availability improvement alone is insufficient per Novartis (2013 SC). Section 3(d) is India's anti-evergreening shield.

C2. Problem: Government Cancels Kusum's Patent — Is it Legal?

(Based on Aug/Sep 2024 Q15: Kusum is granted a patent for a product but couldn't commercialise it due to personal reasons even after four years. The government cancels her patent and grants it to Samuel. Can the Government do so? Under which provisions? Discuss.)

I — ISSUE

(1) Whether the government can cancel Kusum's patent after 4 years of non-commercialisation; (2) Whether the patent can be granted to Samuel (a third party); and (3) Under which provisions of the Patents Act, 1970 such action is permissible.

R — RULE

The following provisions govern:

1. Section 83 — Working of Patents: Patents must be worked in India on a commercial scale. Not working a patent on commercial scale (or importing as a substitute for working) is a ground for compulsory licence.
2. Section 84(1) — Compulsory Licence (after 3 years of grant): Any person may apply to the Controller for a compulsory licence if:
   (a) Reasonable requirements of the public have not been satisfied;
   (b) The patented invention is not available at a reasonably affordable price; OR
   (c) The patented invention is NOT WORKED in the territory of India.
3. Section 84(3): An applicant for compulsory licence must make effort to obtain a voluntary licence from the patentee on reasonable terms; only if refused or negotiations fail within 6 months → apply to Controller.
4. Section 85 — Revocation of Patent by Controller: If, after a compulsory licence has been granted, the reasonable requirements of the public remain unsatisfied OR the patented invention is still not worked in India within 2 years of the compulsory licence → Central Government may apply to the Appellate Board for REVOCATION of the patent.
5. Section 64 — Revocation: Provides grounds for revocation including that the invention is not worked in India.
6. Section 102 — Government Acquisition: The Central Government may, by notification, acquire a patent for a government purpose, paying adequate compensation. But the patent is acquired BY the government — not granted to a third party like Samuel.

> 🟨 **KEY LEGAL SEQUENCE: Non-working (4 years) → Compulsory Licence (Section 84, after 3 years) → If CL still doesn't fix the problem → Revocation (Section 85/64). Patent does NOT automatically transfer to a third party — the government cannot simply 'grant it to Samuel'.**

A — APPLICATION

Applying the rules to the facts:

- Kusum has held the patent for 4 years (3+ years elapsed since grant) — the working obligation under Section 83 has not been fulfilled (no commercialisation due to personal reasons)
- Section 84 ground (c) is SATISFIED: Patent not worked in India → any interested person (including Samuel) can apply to the Controller for a COMPULSORY LICENCE, NOT for the patent itself
- The government CANNOT directly cancel the patent and grant it to Samuel — this is legally incorrect. The correct mechanism is:
  - Step 1: Samuel (as an interested person) applies to Controller for compulsory

licence under Section 84 after 3 years of patent grant
  - Step 2: Controller considers the application; since patent is not worked in India → compulsory licence may be granted to Samuel
  - Step 3: If even after compulsory licence the patent is not worked → Central Government applies to IPAB/HC for REVOCATION under Section 85/64
  - Step 4: If revocation granted → patent is void ab initio — but still does NOT 'transfer' to Samuel; Samuel would need to file a FRESH patent application
  - Alternatively, under Section 102 — Government can ACQUIRE Kusum's patent (not grant it to Samuel) — paying her adequate compensation

⚖ Bayer v. Natco (IPAB 2012) — Compulsory licence granted, not revocation or transfer. The patentee retains ownership; the licensee gets right to work.

WHAT THE GOVERNMENT CAN LEGALLY DO:

- Grant a compulsory licence to Samuel under Section 84 (after 3 years) — Kusum remains patent owner
- Acquire the patent under Section 102 — government becomes owner, pays Kusum; still cannot 'give' to Samuel
- Apply for revocation under Section 85/64 — patent voided, enters public domain; Samuel files fresh application

C — CONCLUSION

The government's action as described is LEGALLY INCORRECT in its framing — it cannot simply cancel Kusum's patent and 'grant it to Samuel' as if transferring ownership.

HOWEVER — the following is legally permissible:

- YES — the government CAN take action after 4 years of non-working
- The CORRECT mechanism is: Compulsory Licence (Section 84) → Samuel gets licence to work the patent while Kusum retains ownership
- If CL insufficient → Revocation (Section 85/64) → patent void → public domain → Samuel files fresh application
- Alternatively: Government Acquisition (Section 102) → government takes ownership with compensation to Kusum

🟨**FINAL ANSWER: Government CANNOT directly cancel and 'grant' patent to Samuel. Correct route: Section 84 Compulsory Licence to Samuel (Kusum keeps patent); OR Section 85/64 Revocation (patent void); OR Section 102 Government Acquisition. Non-working for 4 years = Section 84 ground clearly established.**

C3. Problem: Mind-Reading Hat — Patentable under Patents Act, 1970?

(Based on July/August 2025 Q16: An individual files a patent for a hat that claims to grant the wearer the ability to read minds through magnetic fields. Evaluate the patentability of the invention under the Patents Act, 1970.)

I — ISSUE

Whether a patent application for a hat that purportedly enables the wearer to read minds through magnetic fields satisfies the statutory criteria for patentability under the Patents Act, 1970.

R — RULE

The following statutory criteria govern patentability:

1. Section 2(1)(j) — 'Invention': A new product or process involving an INVENTIVE STEP and capable of INDUSTRIAL APPLICATION. The claimed product must actually work as claimed.

2. Section 3(a) — NON-PATENTABLE: 'An invention which is frivolous or which claims anything obviously contrary to well established natural laws.' This is an absolute bar — no patent for inventions that violate established science.

3. Novelty (Section 2(1)(l)): The invention must not be anticipated by prior art.

4. Inventive Step (Section 2(1)(ja)): Must involve technical advance not obvious to a person skilled in the art.

5. Industrial Application (Section 2(1)(ac)): Must be capable of being made or used in any industry. An invention that does not work cannot be 'used in industry'.

6. Enablement (Section 10): Complete specification must enable a person skilled in the art to reproduce the invention. If the mechanism is pseudo-scientific, it cannot be enabled.

> 🟨**SECTION 3(a) — THE FRIVOLITY/NATURAL LAWS BAR: If an invention claims to do something that contradicts established natural laws (physics, chemistry, biology) — it is ABSOLUTELY BARRED from patentability. No discretion. No exceptions. Mind-reading via magnetic fields has no scientific basis — it violates established neuroscience and physics.**

A — APPLICATION

Systematically evaluating the mind-reading hat against each patentability criterion:

Test 1 — Section 3(a): Frivolous / Contrary to Natural Laws

- Mind-reading — telepathy — has NO established scientific basis in physics, neuroscience, or any natural science
- 'Reading minds through magnetic fields' contradicts established laws of neuroscience and electromagnetic physics
- This is OBVIOUSLY CONTRARY TO WELL ESTABLISHED NATURAL LAWS → Section 3(a) BARS the patent
- Result: ABSOLUTE BAR. Application rejected at this stage itself.

Test 2 — Novelty

- Mind-reading devices appear in science fiction literature (extensive prior art in fiction)
- No actual working prior art exists — but the claim itself is not novel in conception
- Result: Likely lacks novelty (if prior publications exist) — additional ground for rejection

Test 3 — Inventive Step

- There is no technical advance because the claimed result is scientifically impossible
- A person skilled in art (neuroscientist/physicist) would immediately recognise this as pseudo-science

- Result: No inventive step — a scientifically impossible claim is not a technical advance

Test 4 — Industrial Application

- An invention that does not work CANNOT be 'used in any industry'
- The specification cannot enable a person skilled in the art to reproduce a working mind-reading device — because it is physically impossible
- Result: Fails industrial application test (utility test)

Test 5 — Enablement (Section 10)

- The complete specification cannot enable a PSITA to reproduce the invention — pseudo-scientific mechanism cannot be described in enabling terms
- Result: Specification is deficient — additional ground for rejection

📌 Example: Historical parallel: Patent applications for 'perpetual motion machines' (machines that run forever without energy input — violating thermodynamics) are routinely rejected under Section 3(a) worldwide for being contrary to natural laws.

⚖️ Section 3(a) has been applied to reject patents for 'inventions' like perpetual motion machines, zero-point energy devices, and other pseudo-scientific claims in India and internationally.

C — CONCLUSION

The patent application for the mind-reading hat is NOT PATENTABLE — it fails EVERY criterion:

- SECTION 3(a): ABSOLUTE BAR — claim is obviously contrary to established natural laws (primary ground)
- NOVELTY: Questionable — prior publications exist
- INVENTIVE STEP: Fails — no technical advance; scientifically impossible claim
- INDUSTRIAL APPLICATION: Fails — invention does not work; cannot be used in industry
- ENABLEMENT: Fails — specification cannot enable a PSITA to reproduce the invention

The Controller of Patents must reject the application under Section 3(a) at the examination stage itself. The application does not deserve further scrutiny once Section 3(a) is triggered.

🟨 **FINAL ANSWER: Patent REFUSED on MULTIPLE GROUNDS. Primary: Section 3(a) — frivolous and contrary to natural laws (mind-reading is scientifically impossible). Secondary: Fails novelty, inventive step, industrial application, and enablement. This is the clearest possible case of non-patentability.**

C4. Problem: Improved Motorcycle — Can the Brother Get a Patent?

(Based on Nov 2022 Q14: A mechanical engineer holds a patent on a motorcycle. His brother, while working in the same company, rectified inherent defects and further improved the model. Can the brother get a patent on the new improved motorcycle?)

I — ISSUE

Whether the brother can obtain a patent for his improvements to the mechanical engineer's patented motorcycle, and what conditions must be satisfied for such a patent.

R — RULE

1. Section 2(1)(j) — Invention: New product or process involving inventive step + industrial application.

2. Section 54 — Patent for Improvement: A patent may be granted for an improvement in or relating to a patented invention, provided the improvement itself satisfies novelty + inventive step + industrial application.

3. Section 6 — Who can apply: The inventor, assignee of the inventor, or legal representative. The brother must be the actual inventor of the improvements.

4. Employment context (Section 17 — ownership): If the brother made the improvements in the course of his employment and his contract of employment requires him to make inventions → the employer (company) may own the invention, NOT the brother personally.

5. A patent for improvement is a DEPENDENT PATENT — the brother's improved motorcycle patent cannot be commercially exploited without a licence from the original patent holder (the mechanical engineer) for the base invention.

> 🟨**IMPROVEMENT PATENT RULE (Section 54): Improvement on existing patent = new patent possible IF the improvement is itself novel and inventive. BUT the improvement patent is DEPENDENT — cannot be worked without licence from the original patentee.**

A — APPLICATION

Applying the rules:

- The brother rectified inherent defects and made improvements — if these improvements are NEW and involve an INVENTIVE STEP not obvious to a mechanical engineer, they qualify as patentable under Section 54
- Fixing inherent defects: If the fix was obvious to any skilled mechanic → lacks inventive step → no patent. If the fix was non-obvious and technically innovative → inventive step satisfied
- EMPLOYMENT ISSUE: Brother works in the same company as the engineer. If:
  - His employment contract includes IP assignment clause → improvements belong to the COMPANY, not the brother
  - He made the improvement using company resources/time → company may claim ownership
  - He made it independently on personal time → improvement may belong to him personally
- DEPENDENCY ISSUE: Even if brother gets a patent for the improvement, he CANNOT manufacture/sell the improved motorcycle without a licence from the mechanical engineer (who holds the base patent on the motorcycle)
- Similarly, the mechanical engineer cannot make the improved version without the brother's licence on the improvement

> ⚖ *Monsanto Technology v. Nuziveedu (2018 SC) — Improvement patents and dependent patent relationships discussed in context of agricultural technology.*

CROSS-LICENSING: The practical solution is a CROSS-LICENSING arrangement between the brothers — each licences the other to use their respective patents, enabling the improved motorcycle to be manufactured and sold.

C — CONCLUSION

YES — the brother CAN get a patent for the improvement, PROVIDED:

- The improvements satisfy NOVELTY and INVENTIVE STEP (not obvious fixes)
- The brother is legally the owner (employment contract does not assign IP to the company)
- He files a patent application under Section 54 (improvement patent)

However — IMPORTANT LIMITATION:

- The improvement patent is DEPENDENT on the original motorcycle patent
- The brother CANNOT commercially exploit the improved motorcycle without a licence from the mechanical engineer (original patentee)
- Recommended solution: CROSS-LICENSING agreement between the brothers

🟨 **FINAL ANSWER: Brother CAN get improvement patent (Section 54) if improvements are novel + inventive + his own (not employer's). BUT improvement patent is DEPENDENT — he needs licence from engineer to manufacture. Best solution = Cross-licensing agreement between the brothers.**

⚡ QUICK REVISION SHEET — UNIT V

🔢 Key Sections — Patents Act, 1970

Section	Content
Section 2(1)(j)	Definition of 'invention' — new product/process + inventive step + industrial application
Section 2(1)(ja)	Definition of 'inventive step' — technical advance + not obvious to PSITA
Section 2(1)(l)	Definition of 'new invention' — not anticipated by prior art anywhere in world
Section 3	Non-patentable subject matter (list of 19 exclusions)
Section 3(a)	Frivolous / contrary to natural laws — ABSOLUTE BAR
Section 3(d)	New form of known substance — no enhanced efficacy → NOT patentable (anti-evergreening)
Section 3(j)	Plants, animals, essentially biological processes → NOT patentable (use PPVFR Act)
Section 3(k)	Computer programmes per se → NOT patentable
Section 3(p)	Traditional knowledge → NOT patentable
Section 6	Who may apply for patent — inventor, assignee, legal representative
Section 7	Ordinary application for patent (with provisional or complete specification)
Section 8	Obligation to disclose foreign patent applications
Section 10	Complete specification — enablement, claims, best method
Section 16	Divisional application — when application contains two inventions
Section 35–42	Secrecy directions — defence inventions; Section 39 = must file in India first
Section 47	Government use of patented invention — compensation paid; ownership unchanged
Section 48	Rights of patentee — Make, Use, Offer for Sale, Sell, Import
Section 53	Patent term — 20 years from date of filing; annual renewal fees
Section 54	Patent for improvement / addition — dependent patent
Section 60	Restoration of lapsed patent — within 18 months of lapse
Section 63	Surrender of patent by patentee voluntarily
Section 64	Revocation of patent — grounds; counter-claim in infringement suit
Section 83	General principles — patents must be worked; not against public interest
Section 84	Compulsory licence — after 3 years; 3 grounds (public need, affordability, working)
Section 85	Revocation for non-working — after compulsory licence still not worked
Section 90	Conditions of compulsory licence — royalty, non-exclusive, domestic supply
Section 92	Compulsory licence in national emergency — no prior negotiation
Section 102	Government acquisition of patent — compensation to patentee

Section 104	Jurisdiction for infringement suits — District Court / High Court
Section 107A	Bolar exemption — research/regulatory use not infringement; parallel imports
Section 108	Remedies for infringement — injunction, damages, account of profits
Section 135	Convention application — Paris priority within 12 months

⚖ Top Cases — One-Liner

- Novartis v. Union of India (2013 SC): Section 3(d) upheld; Gleevec (imatinib mesylate) rejected — new polymorph, no enhanced therapeutic efficacy
- Bayer v. Natco / UOI (IPAB 2012, SC 2014): India's FIRST compulsory licence; Nexavar Rs.2.8L → Rs.8,880; Section 84 all 3 grounds met
- Roche v. Cipla (Delhi HC 2012/2015): Cancer drug patent infringement; public interest weighed in interim injunction denial
- Monsanto v. Nuziveedu (2018 SC): Bt cotton technology — plant variety ≠ patentable; PPVFR Act governs; Section 3(j) applied
- Diamond v. Chakrabarty (1980 US SC): Genetically engineered microorganism patentable — 'anything under sun made by man'. India's approach differs — Section 3(j) bars plants/animals.
- US v. India (WTO DS50, 1997): TRIPS compliance — India required to introduce product patents for pharma/agro by 2005

🧠 Memory Mnemonics

> 🟨 THREE PILLARS OF PATENTABILITY: 'NII' = Novelty + Inventive Step + Industrial Application. ALL THREE mandatory.

> 🟨 PATENTEE'S RIGHTS (Section 48): '5 MUSIIs' = Make, Use, Sell, Import, sue for Infringement

> 🟨 PATENTEE'S OBLIGATIONS: 'WPDA' = Work the patent in India, Pay renewal fees, Disclose best method, disclose foreign Applications (Section 8)

> 🟨 SECTION 84 COMPULSORY LICENCE GROUNDS: '3 As' = (a) public need unmet, (b) Affordability (not reasonably priced), (c) Absent from India (not worked)

> 🟨 SECTION 3 KEY EXCLUSIONS: 'FTJKP' = Frivolous (3a), Therapeutic methods (3i), plants/animals/biological processes (3j), computer programmes per se (3k), traditional knowledge Patents (3p)

> 🟨 TYPES OF PATENTS: 'PP-CDA' = Product, Process, patent for improvement (Addition), Convention, Divisional, Application (PCT)

> 🟨 SECTION 3(d) TEST: New form of known substance → Enhanced Therapeutic Efficacy required → Otherwise BARRED. 'New Form ≠ New Patent without New Effect'

🟨 GOVERNMENT ACTIONS ON PATENTS: 'CRAS' = Compulsory Licence (Section 84/92), Revocation (Section 64/85), Acquisition (Section 102), Secrecy (Section 35)

⚠ Exam TRAP Questions

- TRAP: 'Section 3(d) bars all new pharmaceutical patents' → NO. It bars new FORMS of KNOWN substances without enhanced therapeutic efficacy. Genuinely new compounds are patentable.
- TRAP: 'Compulsory licence can be applied for immediately after patent grant' → NO. Must wait 3 YEARS after patent grant (Section 84). Exception: national emergency under Section 92 — no waiting.
- TRAP: 'Compulsory licence = free to use the patent' → NO. Adequate ROYALTY must be paid to patentee (Section 90). Compulsory ≠ free.
- TRAP: 'Government can cancel a patent and give it to someone else' → NO. Correct mechanisms: Compulsory Licence (licensed to a third party, not transferred), Revocation (patent voided, enters public domain), Acquisition (government acquires — not a third party).
- TRAP: 'Plant variety inventors can get a patent in India' → NO. Section 3(j) bars it. Use PPVFR Act 2001 (NDUS criteria).
- TRAP: 'Process patent owner can stop anyone from making the same product' → NO. Only PRODUCT patent gives exclusive right over the PRODUCT itself. A process patent only covers THAT SPECIFIC PROCESS.
- TRAP: 'Bolar exemption means generic companies can sell patented drugs during patent term' → NO. Bolar exemption (Section 107A) allows research and regulatory submissions ONLY — not commercial sale during patent term.
- TRAP: 'PCT grants an international patent' → NO. PCT streamlines filing. Each country independently grants or refuses a patent. There is NO international/global patent.
- TRAP: 'Improvement patent owner can commercialise freely' → NO. Improvement patent (Section 54) is DEPENDENT — needs licence from original patentee to exploit commercially.

📊 Complete IPL — All 5 Units Star Rating Summary

Unit	Topic	Most Important Questions	Rating
I	Introduction to IP	Forms of IP, GI, Plant Varieties, Biotechnology	⭐⭐⭐⭐⭐
II	International Regime	WIPO, TRIPS, Paris, Berne, Compulsory Licence	⭐⭐⭐⭐⭐
III	Copyright	Infringement, Idea-Expression, Moral Rights, Fair Dealing	⭐⭐⭐⭐⭐
IV	Trademarks & Designs	Non-Conventional TM, Passing Off, Deceptive Similarity, Design Piracy	⭐⭐⭐⭐⭐
V	Patents	Patentability, Section 3(d), Compulsory Licence, Rights of Patentee	⭐⭐⭐⭐⭐

🎯 Pre-Exam Master Checklist

- Know ALL Section 3 exclusions — especially 3(a), 3(d), 3(j), 3(k), 3(p)
- Know the patentability TRIAD: Novelty + Inventive Step + Industrial Application

- Know Section 84 compulsory licence: 3 years wait + 3 grounds (NII: Need, unAffordable, not In India)
- Know TRIPS Art. 31 + Doha Declaration for compulsory licensing international basis
- Know Novartis v. UOI (2013) + Bayer v. Natco (2012/2014) inside out — most cited cases
- Know the difference: Product Patent (stronger) vs Process Patent (weaker)
- Know Section 54 — improvement patent is DEPENDENT
- Know Sections 35–42 (secrecy) and Section 102 (acquisition) for government limitation questions
- Know PCT: 30-month national phase entry; does NOT grant patents; 157 countries
- Practice all 4 IRAC problems in this unit — all are from past papers or near-identical patterns

END OF UNIT V — COMPLETE IPL SERIES

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Osmania University | LL.B. (3-YDC) | 4th Semester | IPL Paper-V

Best of luck in your examinations! 🏆